"citizens of the United States." Only the individual complainants may maintain this suit. P. 514.

3. The privilege of a citizen of the United States to use the streets and parks for communication of views on national questions may be regulated in the interest of all; it is not absolute, but relative, and must be exercised in subordination to the general comfort and convenience, and in consonance with peace and good order; but it must not, in the guise of regulation, be abridged or denied. Distinguishing *Davis* v. *Massachusetts*, 167 U. S. 43. P. 515.
4. The ordinance here in question, which forbids public assembly in the streets or parks of the city without a permit from the Director of Safety, who may refuse such permit upon his mere opinion that such refusal will prevent "riots, disturbances or disorderly assemblage," is void upon its face. P. 516.

   It does not make comfort or convenience in the use of the streets or parks the standard of official action, and can be made the instrument of arbitrary suppression of free expression of views on national affairs. Uncontrolled official suppression of the privilege of public assembly can not be made a substitute for the duty to maintain order in connection with the exercise of the right.
5. The question whether exemption from the searches and seizures proscribed by the Fourth Amendment is afforded by the privileges and immunities clause of the Fourteenth is not involved. P. 517.
6. An ordinance absolutely prohibiting distribution of circulars, handbills, placards, etc., in any street or public place is void. *Lovell* v. *Griffin*, 303 U. S. 444. P. 518.

Per STONE, J., with whom REED, J., concurred. The CHIEF JUSTICE concurred in part (p. 532).

1. Freedom of speech and of assembly for any lawful purpose are rights of personal liberty secured to all persons, without regard to citizenship, by the due process clause of the Fourteenth Amendment. P. 519.

   There is no occasion in this case to consider whether freedom of speech and of assembly are immunities secured by the privileges and immunities clause of the Fourteenth Amendment to citizens of the United States.
2. The decree which is now affirmed is without support in the record, if the constitutional right of free speech and assembly is dependent on the privileges and immunities clause rather than the due process clause of the Fourteenth Amendment. Complainants